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2026.PHHC.086839



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-23877-2026 (O&M)
Decided On: 04.06.2026

MOKSHIT KAPOOR

....PETITIONER(S)

VERSUS

STATE OF PUNJAB

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Manbir Singh Batth, Advocate for the applicant/petitioner

Mr. Rajiv Verma, Addl. AG Punjab with
Inspector Simranjeet Kaur, Economic Offences,
Vigilance Bureau, Ludhiana

SANDEEP MOUDGIL, J. (ORAL)

CRM-24786-2026

The instant application has been moved under Section 528 of BNSS, 2023 (Section 482 Cr.P.C. 1973) for placing on record a copy of affidavit as Annexure P-5.

Notice in the application.

Mr. Rajiv Verma, Addl. AG Punjab, having been served with an advance copy of application, accepts notice on behalf of the respondent/State and submits his no objection to the prayer made in the application.

For the reasons stated in the application and in view of no objection submitted by learned State counsel, the same is allowed and affidavit of Mokshit Kapoor is taken on record as Annexure P-3, with all just exceptions.

CRM stands disposed of.

Main Case**1. Prayer**

The jurisdiction of this Court has been invoked under section 482 BNSS,2023 (Section 438 Cr.P.C.), seeking anticipatory bail to the petitioner in FIR No. 06 dated 07.04.2025(P-1) registered at Police Station E.O Wing Vigilance Bureau, Ludhiana, District Ludhiana, under sections 7, 7A of Prevention of Corruption Act, 1988 and Section 61(2) of BNS (Section 120-B IPC, 1860) in the interest of justice. The FIR is reproduced here-in-below:-

“Respected Sir/Madam, it is requested that today, under the supervision of Mr. Inderpal Singh, P.P.S., Deputy Superintendent of Police Station Economic Offences Wing, Punjab, Vigilance Bureau, Ludhiana, complainant Mrs. Sangeeta Kumari, wife of Nirdosh Kumar, resident of Gali No. 8, Gagan Nagar, Giaspura, Ludhiana, submitted a written statement as follows: "I am a resident of the aforementioned address. I work in the private sector. Today, I had gone to the Test Driving Track, Sector 32, Jamalpur, Ludhiana to apply for my learner's driving license. There, I was informed by someone that Pankaj Arora alias Sunny, a private agent, son of Mehrban Arora, resident of Gali No. 4, near Health Max Hospital, Samrala Chowk, Ludhiana-who has a board outside his office displaying the name 'JMD Driving School' is engaged in the work of making driving licenses. I was told that he could apply for my license. So I went to the JMD Driving School office and met Pankaj Arora alias Sunny Arora. He verbally told me that he had been in the business of making new driving licenses for a long time. He said that if I wanted a driving license, he could apply for and prepare my learner's license the same day, and after one month, he would provide me with a permanent license. He assured me that I would not have to visit any government office or RTA office for this purpose. He claimed

that he had full 'arrangements' (setting) with government employees and officers posted at the RTA office and the test driving track. He said that if I didn't know how to drive, the fee would be 7500, and if I had some basic knowledge, the fee would be ₹5500. He explained that the government fee for a driving license was approximately 2000, but he would manage to get the license made by bribing the officials at the driving test track and RTA office. After that conversation, I returned. Today, upon seeing your official government vehicle, I approached you. I earn a livelihood for myself and my family by working a private job. I cannot afford to spend so much money on a driving license, nor do I want to obtain it through bribery. I request that legal action be taken against Pankaj Arora as mentioned above. "Signed: Sangeeta Kumari Attested by: Simranjit Kaur, Inspector of Police, Economic Offences Wing, Vigilance Bureau, Punjab, Ludhiana Date: 07.04.2025 Police Action: Today, under the supervision of Inspector and as per the orders of Shri Inderpal Hayot Singh Singh, Deputy Superintendent of Police, Economic Offences Wing, Vigilance Bureau, Ludhiana, pursuant to D.O. Letter No. 1/1/M-PDC (2025)/119 dated 04/04/2025 from the Government of Punjab, various checking teams were constituted. As part of one such checking team, government witness Shri Rohit Bansal, JE (Civil), GLADA, Ludhiana; ASI Siraj Hasan No. 2C/79; Constable Varinder Singh No. 4C/2051; Senior Constable Sukhwinder Singh No. 4036/CP Ludhiana; and PHG Gurmukh Singh No. 16567 proceeded towards the Test Driving Track, Sector 32, Jamalpur, Chandigarh Road, Ludhiana with a government vehicle, private vehicle, a laptop, and a printer to conduct surprise checks. When the team was near the test driving track, an individual named Sangeeta Kumari, wife of Nirdosh Kumar (resident of the same aforementioned address), approached the government vehicle. She narrated the above-stated details about the bribe demanded by Pankaj Arora for making a driving license. Her statement was typed, read out to her, and signed by her after confirming its correctness. It was also attested by Inspector. DSP Inderpal Singh

then instructed ASI Siraj Hasan to accompany Sangeeta Kumari to the office of Pankaj Arora and record on mobile phone any conversation regarding the bribe for the driving license. After some time, ASI Siraj Hasan along with Sangeeta Kumari returned and played the recorded conversation to the police team, which was later submitted in a pen drive. Sangeeta Kumari then provided the bribe money-10 notes of ₹500 each, totalling ₹5000-whose details are as follows: (1)9VK 673638 (2)4SB 915132 (3)ONV 928288 (4) 5LF 404232 (5) 2FS 607955 (6) 5PC 958462 (7) 7BC 804321 (8) 6GP 751247 (9) 1QE 181699 (10) 6BA 985084 accordingly photographed and recorded. The bribe amount, in the form of Indian currency notes, was documented, signed by the complainant and government witnesses, and handed back to Sangeeta Kumari. She was instructed to go to Pankaj Arora and apply for her driving license, and to hand over the notes only upon demand for a bribe. Sangeeta Kumari and ASI Siraj Hasan were dispatched accordingly. Based on Sangeeta Kumari's complaint and the recorded conversation, it was found that Pankaj Arora alias Sunny Arora, private agent, son of Mehrban Arora, resident of Gali No. 4, near Health Max Hospital, Samrala Chowk, Ludhiana, had Hagat Singh indeed demanded a bribe for preparing her driving license. His actions fall under the offense defined by Section 7-A of the Prevention of Corruption Act, 1988 (as amended by the 2018 Amendment Act). A written communication for registering an FIR against Pankaj Arora is being sent through PHG Gurmukh Singh No. 16567 to the Police Station, Economic Offences Wing, Vigilance Bureau, Punjab, Ludhiana. Special reports are being issued, and higher officials are being informed. Inspector Man and the police team are engaged in further investigation. Signed: Simranjit Kaur Inspector of Police, Economic Offences Wing, Vigilance Bureau, Punjab, Ludhiana Date: 07.04.2025 Location: Near Test Driving Track, Sector 32, Jamalpur, Ludhiana. Time: 10:50 AM.”

2. **Contentions**

On behalf of the petitioner

Learned counsel for the petitioner contends that the petitioner has been falsely implicated in the present case after delay of 6.5 months as an additional accused only on the basis of alleged money trail purportedly existing between the petitioner and the co-accused which in fact pertains to personal and bona fide financial transactions.

On behalf of the respondent/State

Per contra, learned State counsel while opposing the grant of anticipatory bail contends that the petitioner is has indulged in corruption by obtaining huge amounts from co-accused under a criminal conspiracy, wherein Driving Licences were provided to the public without giving driving test and without appearing in the office.

Heard the counsels and perused the record at hand.

4. **Analysis**

The allegations against the petitioner is that during the analysis of the bank Statement of co-accused Puneet Wadhwan, Data Entry Operator, bearing Account No. 00000031704539011 with the State Bank of India, huge amount of Rs. 1,68,000/- stood transferred to the Account of the petitioner on different dates wherein during the course of investigation it has been found that the monetary transaction took place between the petitioner and one Jaspreet Kaur Deogun, working as Data Entry Operator in the office of RTA, Ludiana.

The ugly truth of corruption is that once it takes root, it spreads across the whole system. There have been several claims of corruption in the transportation sector, such as inducements to officials for various reasons — secure driving licences without training and testing, facilitate the passage of

overloaded trucks or those without valid fitness certificates, avoiding a fine for a driving violation, or even to circumvent intimidating situations, instances of corruption in the transportation sector are in vogue. Assorted acts of corruption are catered for due to lack of enough resources to stop them, as well as administrative practices that encourage such inappropriate acts just to satisfy their own greed. The flawed process of issuing licenses is the main reason why people with inadequate driving skills are allowed to get on the road with their vehicles, thereby putting lives of others at risk.

5. Conclusion

Keeping in view the facts of the instant case wherein allegedly the ongoing nexus between the private agents and officials of the RTA office, Ludhiana has led to issuing of driving licenses without mandatory driving test being conducted, this court opines that touts have found its ways to creep into the system. The real cost of corruption in the government, whether it is local, State, or Federal, is a loss of the public trust. Therefore, by no stretch of imagination this court is inclined to take a lenient view wherein such a conspiracy can only be unearthed through the custodial interrogation of the petitioner.

In view of the discussions made hereinabove, this Court is of the firm view that the petitioner does not deserve the concession of pre-arrest bail, as such the same is dismissed being devoid of any merits.

(SANDEEP MOUDGIL)
JUDGE

04.06.2026
NainaRajput

Whether speaking/reasoned : Yes/No
Whether reportable : Yes/No